

Amendment No. 1 to HB1316

Howell
Signature of Sponsor

AMEND Senate Bill No. 1297*

House Bill No. 1316

by deleting the amendatory language of SECTION 6 and substituting instead the following:

In lieu of a physical driver license, a person who participates in the system may present or submit evidence of possession of a valid driver license in a digital format, which may be accepted as such evidence for identification and other purposes, including upon the request of a law enforcement officer, a seller of alcoholic beverages, or any other person; except, that to verify the person's identification for the purpose of voting, the person shall not present or submit evidence of possession of a valid driver license in a digital format, and a digital driver license must not be accepted as such evidence.

AND FURTHER AMEND by deleting SECTION 8 and substituting instead the following:

SECTION 8. Tennessee Code Annotated, Section 55-50-306 is amended by adding the following new subsections:

(g)

(1) As used in this subsection (g):

(A) "Biometric identifier" means a retina or iris scan, fingerprint, voiceprint, or record of hand or face geometry; and

(B) "Geolocation data" means internet protocol addresses or other information that describes the location of a cellular telephone or other type of portable electronic device, computer, computer system, or computer network from which a person accesses the digital driver license system.

(2) An entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system shall not capture or retain a biometric identifier of a person for purposes of the digital driver license system unless the entity is capturing a photograph for the sole purpose of comparing that photograph to a driver license photograph already on file to confirm the person seeking a digital driver license is the same person who holds the physical driver license.

(3) Neither the department nor an entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system shall capture or retain geolocation data of a person for purposes of the digital driver license system.

(h) Any data, including a photograph, provided by a person to an entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system is personally identifiable information of the person and must not be sold, redisclosed, or otherwise utilized by the entity, except as otherwise provided in subdivision (f)(2).

(i)

(1) A person participating in the digital driver license system is not required to use a digital driver license in lieu of a physical driver license for identification or other purposes.

(2) A private or public entity shall not require, or provide preferential service based on, a person's use of a digital driver license in lieu of a physical driver license.

(j)

(1) The department shall disable, suspend, or terminate a person's participation in the digital driver license system if:

(A) The physical driver license issued to the participant has been cancelled, revoked, or suspended as provided in this chapter; or

(B) The participant reports that the participant's electronic device has been lost or stolen.

(2) The digital driver license must be disabled at the time of suspension, cancellation, or revocation of the physical driver license, and must be removed from the device within twenty (20) days if the physical driver license has not been restored.

(k) For purposes of this section, "driver license" includes a photo identification license issued under § 55-50-336.